UNITED STATES DISTRICT COURT
FOR THE EASTERN DISTRICT OF OKLAHOMA

OKLAHOMA STATE DEPARTMENT OF EDUCATION, and RYAN WALTERS, in his official capacity as Superintendent of Public Instruction, and in his individual capacity, *Plaintiffs,* v. FREEDOM FROM RELIGION FOUNDATION, *Defendant.*	Case No. 6:25-cv-94-JFH Hon. John F. Heil, III

DEFENDANT'S MOTION TO DISMISS AND BRIEF IN SUPPORT

The Freedom From Religion Foundation ("Defendant" or "FFRF") respectfully requests that the Court dismiss the Complaint brought by the Oklahoma State Department of Education ("OSDE"), and Ryan Walters, in his official capacity as Superintendent of Public Instruction, and in his individual capacity (together, "Plaintiffs"),[1] for: (1) lack of standing under Article III of the United States Constitution; (2) failure to demonstrate subject matter jurisdiction under 28 U.S.C. 1331; (3) filing a frivolous lawsuit targeting First Amendment protected expression pursuant to the Oklahoma Citizens Participation Act ("OCPA"); and (4) failure to state a claim upon which relief can be granted as required by Fed. R. Civ. P. 8 and 12(b)(6). While dismissal is proper for all these reasons, any one is a sufficient basis on its own.

The Complaint centers on a simple set of allegations: a non-profit organization sent advocacy letters to government actors. Specifically, Defendant sent letters on behalf of its

[1] While the Complaint lists the State of Oklahoma as a Plaintiff, neither the Summons issued by this Court nor Plaintiffs' later filings list the State of Oklahoma as a Plaintiff. *See* Docs. 2, 8, 11. For this reason, Defendant does not list the State of Oklahoma as a Plaintiff.

members to Oklahoma school districts arguing that the districts were, in Defendant's opinion, violating the U.S. Constitution and asking them to stop. *See* Doc. 2, Ex. B. Through those letters, Defendant expressed its position on a matter of public concern to government actors in the hopes of changing policy, thereby exercising its rights to speak and to petition. *See E. R. R. Presidents Conf. v. Noerr Motor Freight, Inc.*, 365 U.S. 127, 137 (1961) (allowing the people to freely make their wishes known to the government is an essential part of both the right to petition and the basic functioning of representative democracy); *see also Borough of Duryea, Pa. v. Guarnieri*, 564 U.S. 379, 388 (2011) (explaining the rights to free speech and petition as cognate rights essential to representative democracy). Yet, because Plaintiffs, themselves government actors, disagreed with Defendant's views, they chose to respond not by engaging with—or attempting to refute—Defendant's concerns directly, but by using taxpayer dollars to sue Defendant, in an effort to punish and suppress its constitutionally protected speech.

There is no legal basis for this lawsuit. Plaintiffs lack standing because they have failed to identify any injury caused by Defendant, much less an imminent and actual one. Plaintiffs have not met their burden to establish this Court's subject matter jurisdiction, because they have failed to clearly assert any federal claim. Indeed, Plaintiffs fail to state any claim at all because they do not articulate any specific violation of law. Moreover, because the lawsuit is premised entirely on Defendant's exercise of free speech and petition rights, amendment would be futile. Not only should Plaintiffs' Complaint be dismissed, but Defendant is also entitled to attorneys' fees and costs under the OCPA. 12 O.S. § 1438.

Read generously, Plaintiffs ask this Court to believe that Defendant's advocacy letters have so interfered with OSDE and the Superintendent's authority to govern public schools that a legal cause of action in federal court has sprung up, *see* Doc. 2 at ¶¶ 6, 8, but Plaintiffs never explain how, including under what law. Plaintiffs provide only a ramshackle set of citations to federal and state law, never articulating how any one of them creates a cause of action, much less connecting their factual allegations to any purported violation of law.

More fundamentally, Plaintiffs could never sufficiently connect these dots, because all the allegations regarding Defendant's purported misconduct describe FFRF's exercise of its First Amendment rights: sending advocacy letters on matters of public concern, including religious instruction in public schools and the presence of prayers at government meetings, to government entities, and publishing criticism of the government's actions on its website, *id.* ¶¶ 8, 31–36. The Supreme Court has long held that the law cannot be used to prohibit "the rights of association and of petition" or to stop organizations from "us[ing] the channels and procedures of state and federal agencies and courts to advocate their causes and points of view." *California Motor Transp. Co. v. Trucking Unlimited*, 404 U.S. 508, 511 (1972). Yet that is precisely what this lawsuit seeks to do.

Adding insult to injury, Plaintiffs appear to have sued Defendant specifically because they disagree with what Defendant has to say, thereby engaging in unconstitutional viewpoint discrimination. That Plaintiffs have targeted speech so plainly protected by the First Amendment proves that this Complaint is as dangerous as it is frivolous. If the state can weaponize the courts in service of suppressing advocacy efforts with baseless lawsuits, advocacy organizations will face an impermissible and unconstitutional choice: to speak up for what they believe in and face the possibility of time-consuming, expensive, retaliatory, and potentially ruinous lawsuits, or to self-censor and not fulfill their organizational missions. Plaintiffs' decision to file a complaint aimed at suppressing speech with no basis for jurisdiction and no clear articulation of legal claims is worthy of not only dismissal but also sanctions under the OCPA.

FACTUAL BACKGROUND

1. On March 31, 2025, Plaintiffs filed a complaint, *see* Doc. 2, alleging the following relevant facts:

2. On approximately December 17, 2024, Rick Beene, Achille Public Schools ("APS") Superintendent, received a letter from FFRF regarding "[u]nconstitutional school-sponsored prayer and bible readings." *See* Doc. 2, Ex. B. The letter summarized a report from a concerned

parent about APS having "implemented a policy allowing teachers to read Bible verses at the beginning of their classes" and "a custom and practice of beginning each school day with a 'mandatory student-led prayer' over the schools' intercom." *Id.* The letter ended with a statement that "the District must cease permitting instructors to teach students Bible verses, and it must end its schools' practice of beginning each day with school-sponsored student-led prayers." *Id.* The letter made no threat of litigation, instead stating that FFRF "hope[s] to work with the District to address this issue" and asking APS to "respond in writing with the steps the District is taking to address this matter" so FFRF could update the parent who complained of the conduct. *Id.*

3. The Complaint also references a letter FFRF sent to Putnam City Schools in 2018. Doc. 2 at ¶¶ 35–36. This letter followed a complaint to FFRF from a concerned resident about a designated chaplain for the Putnam City high school football team who was reportedly proselytizing to the players and leading them in prayer. *See* Doc. 2, Ex. C. The letter expressed FFRF's position that the chaplain's conduct was a "serious and flagrant violation of the First Amendment" and ended with an "ask" to "commence an immediate investigation into this complaint" and "take appropriate action to end its chaplaincy program." *Id.*

4. The Complaint mentions three other FFRF actions in passing. *See* Doc. 2 at ¶ 8. In 2012, FFRF sent a letter to the Oklahoma Water Resources Board asking the Board to discontinue its practice of opening each meeting with a sectarian prayer. *Id.* In 2018, FFRF wrote the Claremore Police and Fire Departments regarding reports of city employees fundraising for the Salvation Army. *Id.* In 1996, FFRF published a letter written by the late Joann Bell, Former Executive Director of the ACLU of Oklahoma, about her experience of the Oklahoma City Bombing and its aftermath. *Id.*

ARGUMENT

I. Plaintiffs' Complaint Should be Dismissed Pursuant to Fed. R. Civ. P. 12(b)(1).

A. Plaintiffs Lack Standing.

Article III of the U.S. Constitution limits federal court jurisdiction to genuine "cases" or "controversies," which requires that the plaintiff establish standing. U.S. Const. art. 3, § 2, cl. 1; *see e.g., Murthy v. Missouri*, 603 U.S. 43, 58 (2024). Plaintiffs bear the burden of establishing standing, *see e.g., Carney v. Adams*, 592 U.S. 53, 59 (2020), and must show "(i) that [t]he[y] suffered an injury in fact that is concrete, particularized, and actual or imminent; (ii) that the injury was likely caused by the defendant; and (iii) that the injury would likely be redressed by judicial relief." *TransUnion LLC v. Ramirez*, 594 U.S. 413, 423 (2021) (citing *Lujan v. Defenders of Wildlife*, 504 U.S. 555, 560–61 (1992)).[2]

Here, Plaintiffs fail to allege an injury in fact, the "first and foremost" of standing's three elements. *Spokeo, Inc. v. Robins*, 578 U.S. 330, 338 (2016), *as revised* (May 24, 2016) (internal citations omitted). To satisfy this requirement, Plaintiffs must allege (1) "an invasion of a legally protected interest" that is (2) "concrete and particularized" and (3) "actual or imminent, not conjectural or hypothetical." *Id.* at 339 (internal citations omitted). Plaintiffs' alleged injury —"interfere[nce] with" their "statutory dut[ies]" arising from school districts receiving Defendant's advocacy letters, Doc. 2 ¶ 6—cannot meet the first of these three elements, let alone all three.

Plaintiffs have not alleged, nor will they ever be able to allege, a legally protected interest in local school districts being free from public letters. Defendant's advocacy letters on a matter of public concern (religious instruction in public schools) to a government entity are protected by the First Amendment's rights of petition and free speech. *See* Doc. 2 at ¶¶ 31–36. These

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[2] Plaintiffs have cited the Declaratory Judgment Act, which has its own "controversy" requirement, but a "controversy" under the Declaratory Judgment Act is synonymous with the requirements for a "case" or "controversy" under Article III. So, it does not require a separate analysis. *See Surefoot LC v. Sure Foot Corp.*, 531 F.3d 1236, 1241 (10th Cir. 2008).

"cognate" rights work together to ensure the people can "express their ideas, hopes, and concerns to their government" and "foster[] the public exchange of ideas that is integral to deliberative democracy." *Guarnieri*, 564 U.S. at 388; *see also CSMN Invs., LLC v. Cordillera Metro. Dist.*, 956 F.3d 1276, 1282 (10th Cir. 2020) (holding the First Amendment protects "the right of the people . . . to petition the Government for a redress of grievances" and is "one of 'the most precious of the liberties safeguarded by the Bill of Rights'") (quoting U.S. Const., amend. 1 and *BE & K Constr. Co. v. NLRB*, 536 U.S. 516, 524–25 (2002)). Sending letters to government officials is a core exercise of that right, and the government receiving such public advocacy is an essential part of our democracy. *See E. R. R. Presidents Conf.*, 365 U.S. at 137 ("In a representative democracy such as this, . . . the whole concept of representation depends upon the ability of the people to make their wishes known to their representatives."). So, for government actors, receiving and responding to such public advocacy is part of their job, not an invasion of a legally protected interest.

Nevertheless, Plaintiffs seem to suggest that Defendant's protected speech somehow "interferes" with their duties under Oklahoma state law even though the Defendant's letters were sent to local school districts, not Plaintiffs. Doc. 2 at ¶¶ 6, 8. They cite no law that makes it illegal to "interfere" with their statutory duties, much less any authority supporting the proposition that advocacy letters to the school districts could ever violate such a law. *Id.* at ¶¶ 20–24. Nor could they, for the Supreme Court has held that any cause of action that gives a party the ability to sue another for exercising its right to petition would violate the Constitution. *California Motor Transp. Co.*, 404 U.S. at 511 (reaffirming that the Sherman Anti-Trust Act does not prohibit advocacy attempting to influence government policy on trade because such a prohibition would violate the right to petition the government); *see also CSMN Invs., LLC*, 956 F.3d at 1282–90 (applying a similar theory of the right to petition outside the anti-trust context).

Here, the constitutional barriers to having a legally protected interest are even clearer. In those cases, one private party sued another because of advocacy efforts it disliked. But here, the government itself, the very entity to which members of the public have a clearly established right

to petition, is attempting to claim a legally cognizable interest in being free from public advocacy. In other words, Defendant exercised its right to "petition the government for a redress of grievances," U.S. Const., amend. 1, and the government has now sued it for that.

Moreover, Plaintiffs' apparent decision to sue Defendant because they disagree with Defendant's advocacy is unconstitutional viewpoint discrimination. "The government may not discriminate against speech based on the ideas or opinions it conveys." *See, e.g., Iancu v. Brunetti*, 588 U.S. 388, 393 (2019). To the contrary, viewpoint discrimination is an "egregious form of content discrimination" that is "presumptively unconstitutional." *Rosenberger v. Rector and Visitors of Univ. of Va.*, 515 U.S. 819, 829–30 (1995). In short, Plaintiffs do not have and never will have a legal interest to sue under these facts because the theory at the heart of their Complaint is itself unconstitutional.

Plaintiffs' citation to *Rio Grande Found. v. Oliver* suggests an alternative theory of injury that relies on an alleged chilling effect on Plaintiffs' speech. *See* Doc. 2 at ¶ 18. To the extent that Plaintiffs are asserting this theory of injury, they have the First Amendment backward twice over: the First Amendment does not protect government speech and, far from prohibiting public criticism, it protects the political advocacy of private actors. *See, e.g., Moody v. NetChoice, LLC*, 603 U.S. 707 (2024) ("[T]he way the First Amendment achieves its goal [of creating an expressive realm in which the public has access to a wide range of views] is by preventing the government from tilting public debate in a preferred direction . . . not by licensing the government to stop private actors from speaking as they wish[.]") (cleaned up and citations omitted)). That is why *Rio Grande*—and every other case that considered chilled speech as an injury for standing—centered on government action chilling private speech. *See* 57 F.4th at 1160 (assessing chilled speech of a private organization challenging New Mexico's anti-electioneering laws); *see e.g., Susan B. Anthony List v. Driehaus*, 573 U.S. 149, 151 (2014) (assessing chilled speech of private speakers challenging an Ohio law). Plaintiffs' citation to *Rio Grande* only proves again how frivolous and dangerous this lawsuit is: Plaintiffs, in a Complaint premised entirely on targeting free speech the government dislikes, have cited to a line of cases meant to

protect the public from the very type of government censorship Plaintiffs are engaging in through their action.

Since Plaintiffs do not have and never will have the legal interest necessary for standing under these facts, this Court should dismiss Plaintiffs' Complaint pursuant to Fed. R. Civ. P. 12(b)(1) for lack of standing.

B. Plaintiffs' Complaint Fails to Demonstrate That This Court Has Subject Matter Jurisdiction.

"Federal courts are courts of limited jurisdiction, possessing only that power authorized by Constitution and statute." *Gunn v. Minton*, 568 U.S. 251, 256 (2013) (marks and citation omitted). Here, Plaintiffs cannot meet their "burden" of establishing that their claims meet the requirements for access to federal court. *Merida Delgado v. Gonzales*, 428 F.3d 916, 919 (10th Cir. 2005). To establish federal question jurisdiction, Plaintiffs must plead an affirmative cause of action that arises under federal law. "[T]he plaintiff's statement of his own cause of action [must] show[ ] that it is based upon th[e federal] laws or . . . Constitution." *Louisville & Nashville R. Co. v. Mottley*, 211 U.S. 149, 152 (1908). And, for that, "it must be clear from the face of the plaintiff's complaint that there is a federal question." *Devon Energy Prod. Co., L.P. v. Mosaic Potash Carlsbad, Inc.*, 693 F.3d 1195, 1202 (10th Cir. 2012).[3] Here, Plaintiffs' disorganized and unexplained citations to both state and federal law, combined with a "Claims for Relief" section that states no cause of action, fail this requirement.

Plaintiffs cite to two sources of federal law—the Establishment and Free Exercise Clauses of the First Amendment, Doc. 2 at ¶ 20, and 20 U.S.C. § 6314, a statute that requires schools receiving federal funding to provide counseling, mental health services, and

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[3] To support their claim to this Court's jurisdiction, Plaintiffs cite to 28 U.S.C. §§ 1331, 2202, and 2201. *See* Doc. 2 at ¶ 17. But only 28 U.S.C. 1331 could grant this Court jurisdiction because the remaining two statutes, 28 U.S.C. §§ 2201, 2202, provide for available remedies but do not extend the federal courts' jurisdiction. *See Skelly Oil Co. v. Phillips Petroleum Co.*, 339 U.S. 667, 671 (1950) (explaining that 28 U.S.C. §§ 2201, 2202—the Declaratory Judgment Act —is purely remedial and does not enlarge the federal courts' jurisdiction); *see also Devon Energy Prod. Co., L.P.*, 693 F.3d at 1202.

extracurricular activities, *id* at ¶ 24—but they make no effort to communicate what cause of action might flow from either. Nowhere do they directly accuse the Defendant of violating Plaintiffs' rights under the Free Exercise Clause—nor could they. The Free Exercise Clause does not protect the government from advocacy against religious practices; it protects against religious persecution at the hands of the government. *See e.g., Church of Lukumi Babalu Aye, Inc. v. City of Hialeah*, 508 U.S. 520, 532–33 (1993) (explaining that the Free Exercise Clause is a response to religious persecution by the government and thus protects private citizens from such persecution by the state). They also fail to in any way explain how 20 U.S.C. § 6314 might somehow create a cause of action against Defendant.[4] This is far from the clarity necessary to make it "clear from the face of the . . . complaint that there is a federal question." *Devon Energy*, 693 F.3d at 1202. This Court should therefore dismiss the Plaintiffs' complaint pursuant to Fed. R. Civ. P. 12(b)(1) for lack of subject matter jurisdiction.

II. Plaintiffs' Complaint Should Be Dismissed Pursuant to OCPA.

A. OCPA prohibits frivolous legal actions in response to free speech.

To "safeguard the constitutional rights of persons to petition, speak freely, [and] associate freely," the Oklahoma Citizens Participation Act ("OCPA") grants defendants the ability to file a motion to dismiss "if the legal action relates to or is in response to free speech." *Anagnost v. Tomecek*, 2017 OK 7, ¶ 8, 390 P.3d 707, 709–10 (Okla. 2017) (citing 12 O.S. §§ 1430(B)) (internal citations omitted). OCPA is meant to counteract "strategic lawsuits against public participation [SLAPPs] . . . aimed at deterring public participation in decision-making forums."

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[4] Plaintiffs' allegations of "interference" focus on their state law, not federal law, obligations. *See* Doc. 2 at 1 (citing to Oklahoma 70 O.S. § 1-105); *see also id.* at ¶¶ 21–23 (citing similar Oklahoma statutes regarding OSDE's authority to govern public schools). But, to the extent that their theory is that Defendant has somehow interfered with their Section 6314 obligations, that theory fails for the same reasons that Plaintiffs lack standing to assert a claim of "interference" with its state statutory obligations: Plaintiffs have not identified any law prohibiting such "interference," nor could they when it comes in the form of public advocacy letters petitioning the government for change.

Id. at 710. To that end, the OCPA imposes a burden shifting framework, heightened pleading standards for plaintiffs, and mandatory attorneys' fees and sanctions. *See* 12 O.S. §§ 1434, 1438.

Invoking and applying OCPA involves a three-step burden-shifting framework: (1) the defendant must show that the plaintiff's claim is "based on, relates to, or is in response to the [defendant's] exercise of the right of free speech, the right to petition, or the right of association;" (2) the burden then shifts to the plaintiff to show "by clear and specific evidence a prima facie case for each essential element of the claim in question"; (3) if the plaintiff succeeds, the burden shifts back to the defendant to show "by a preponderance of the evidence" a defense to the plaintiff's claims. *See* 12 O.S. §§ 1434(B)–(D); *see also Krimbill v. Talarico*, 2018 OK CIV APP 37, ¶ 9, 417 P.3d 1240, 1245 (Okla. Civ. App. 2018). If, at the second step, the plaintiff cannot demonstrate a prima facie case, OCPA requires the court to dismiss the action, provide the defendant reasonable attorneys' fees and court costs, and impose sanctions on the plaintiff. *See* 12 O.S. § 1438(A).

B. OCPA requires dismissal, attorneys' fees and costs, and sanctions here.

Defendant satisfies OCPA's first step, which requires a defendant to "show[] by a preponderance of the evidence that the legal action is based on, relates to or is in response to the party's exercise of: 1. The right of free speech; 2. The right to petition; or 3. The right of association." 12 O.S. § 1434(B); *see also Yates v. Gannett Co.*, 2022 OK CIV APP 41, ¶ 11, 523

[Pages 12 to 14 are not transcribed in this sample.]

CONCLUSION

For all the foregoing reasons, Defendant respectfully requests that this Court dismiss Plaintiffs' Complaint, reward reasonable attorneys' fees and court costs to Defendant, and impose sanctions on Plaintiffs under the OCPA.

Date: May 9, 2025

Respectfully submitted,

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CERTIFICATE OF SERVICE

I hereby certify that on May 9, 2025, I electronically filed the foregoing Motion to Dismiss and Brief in Support with the Clerk of Court via the Court's CM/ECF system, which effects service upon all counsel of record.

Respectfully submitted,

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